

22STCV24310 22STCV24310

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C06%2F23%2F2026

Source SHA-256: 622aa80b0ff57c6f86034d23040ff999e26fcfc0af4c692c11254a80d7f9d7

Case Number: 22STCV24310 Hearing Date: June 23, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

June 23, 2026

CASE NUMBER

22STCV24310

MOTION

Motion to Compel Satisfaction of Judgment

MOVING PARTY

Defendant Elmer

Yovani Nunez

OPPOSING PARTY

None

MOTION

Defendant Elmer

Youvani Nunez ("Defendant") moves to compel Plaintiff Grand Promenade LLP ("Plaintiff") to enter satisfaction of judgment. In its order of May 11, 2026, the Court continued the hearing to June 16, 2026 because Defendant filed a proof of service of this motion on Plaintiff indicating service was made on May 4, 2026, which was far short of the statutorily prescribed time for service.

Defendant did not

file a proof of service of the motion on Plaintiff for the June 16, 2026

hearing. On June 8, 2026, the Court sua

sponte continued the hearing from June 16 to June 23, 2026 because the Court was

scheduled to be dark on June 16. Plaintiff

then, on June 8, 2026, provided notice of the continuance. The Court notes Plaintiff had also filed an

opposition to the motion on May 8, 2026.

Under the circumstances, despite Defendant failing to subsequently file a

proof of service of this motion he brought, the Court will consider the motion

on its merits.

ANALYSIS

California Code of

Civil Procedure sections 724.010, subdivision (a) provides, "[a] money judgment

may be satisfied by payment of the full amount required to satisfy the judgment

or by acceptance by the judgment creditor of a lesser sum in full satisfaction

of the judgment.”

On or about February

8, 2023, after a court trial, this Court entered a monetary judgment against Defendant

for \$46,447.40 and stayed its enforcement until February 1, 2024. (See February 8, 2023 Judgment After Court

Trial.) Defendant purports to attach to a

declaration proof the judgment in this matter has been satisfied. In that declaration, Defendant proclaims “[t]otal

payments received by the state of California and the city of Los Angeles ,

equals \$145,625.83. [Plaintiff] still end up with a surplus of over \$35,000.” (Declaration in Support of Exhibit List,

Exhibit 1, p. 5.) Defendant later

alludes to an amount of \$48,600 having been paid to Plaintiff on April 1, 2022.

(Id., Exhibit 1, p. 6.) Defendant

then attaches a one-page document which purports to relate a payment of \$48,600

“Paid from REGIONS BANK,” but that document does not indicate to whom such payment was

made. (Id., Exhibit 2.)

Plaintiff has

countered by maintaining an outstanding balance remains owed to it. Plaintiff disputes Defendants accounting for

the payments, arguing at least \$1,885.50 remains due and owing in that the

attorney fees and costs to which it is entitled have not yet been paid. Defendant does not credibly dispute

this. Nor does Defendant establish Plaintiff

has agreed to accept a lesser amount as full satisfaction of the judgment.

While the Court

agrees Defendant has the burden to prove the judgment has been satisfied, the

Court notes, Plaintiff has not chosen to provide conclusive evidence by way of

any accounting of the exact amount which has been applied to the judgment and what

remains owed to date. This is

significant, given Defendant's pronouncement significant amounts have been

advanced to Plaintiff, as related in a ledger attached to the Declaration. (See Declaration, Exhibit 5, p. 1.)

For that reason, at

the hearing of this matter, the Court will continue the motion for hearing for Plaintiff

to provide such evidence so the Court can have an accounting of what has been

paid to Plaintiff to satisfy the judgment and what, if anything, remains to be

paid. Defendant then will have five

court days before the new hearing date to offer any opposition concerning the accounting

Plaintiff provides.

Defendant is to

give notice of the Court's ruling and to file proof of service of same.